ROBINSONS LAND CORPORATION

San Miguel Calasiao Pangasinan
(075) 632-0282

May 16, 2022

**Mr. Adrian Dimacali**
Director
**MARY GRACE FOODS, INC.**
Mary Grace
2985 Mahogany St., United Parañaque 2,
Parañaque City

## LEASE PROPOSAL

Dear Mr. Dimacali,

We are pleased to offer you a space at **Robinsons Place Pangasinan.** Please find below the terms and conditions for the lease of the said space.

**TRADENAME** : Mary Grace
**NATURE/DESCRIPTION OF ESTABLISHMENT** : Food: Novelty Food Store
**LOCATION** : Level 1 K1118 – K1119

**LEASE TERM**
**Commencement Date** : June 15, 2022 or first day of operation whichever comes first.
**Termination Date** : May 14 , 2027
**Turnover Date** : June 14, 2022 subject to final confirmation from the Lessor

**APPROXIMATE FLOOR AREA** : 15 sqm

| Year | Start Date | End Date | Discounted (Php)* | Regular (Php)* |
|---|---|---|---|---|
| 1 | 06/15/2022 | 05/14/2023 | 29,500.00 | 32,450.00 |
| 2 | 06/15/2023 | 05/14/2024 | 30,975.00 | 34,072.50 |
| 3 | 06/15/2024 | 05/14/2025 | 32,524.00 | 35,776.40 |
| 4 | 06/15/2025 | 05/14/2026 | 34,150.00 | 37,565.00 |
| 5 | 06/15/2026 | 05/14/2027 | 35,858.00 | 39,443.80 |

PERCENTAGE (%) RENT — Five Percent (5.00%) rent based on Actual sales or Minimum Monthly Gross Sales, whichever is higher.

**OTHER EXPENSES CHARGEABLE**

**Common Usage Expenses (CUSA)** : Php 120.00 /mo*.
Security, Maintenance, Electricity, and all other Common Area Expenses

Airconditioning Charges : Php 115.00 /mo* .

Pest Control, cashier's salary, advertising and promotional expenses and other individual services/utilities : at reasonable rates/amount to be determined by the LESSOR*

Advertising and PromotionalExpenses/Marketing Support Fund : Php 0.00 /year*

* Subject to VAT



- All amounts herein stipulated may be subject to increase whenever the cost of any of the electricity, labor, water or common area and aircon-related expenses increase.
- The discounted monthly rate shall be the basis if the rent **is paid within the first 7th calendar days of the month** to which the rent corresponds. All amounts herein stated are exclusive of **Value Added Tax (VAT), Documents Stamps Tax and other taxes** which shall be for the account of the Lessee.
- Should Lessee decide to extend its operation beyond the regular mall operating hours, Lessee will be charged subsequent aircon / CUSA and other utility charges at a rate to be determined by the LESSOR. Lessee will have to secure the formal consent of the Lessor for its extension of operating hours.
- Should Lessee decide to install additional Fan Coil Units (FCU) in their area, an additional charge of Php2,150.00 ton/month (subject to increase) shall be billed to cover for the chilled water to be provided to the Lessee.

| | |
|---|---|
| Repairs & Maintenance of Leased Premises, Equipment, Furniture | : Lessee's Account |
| Expense for Individual Utilities | : Lessee's Account |
| PC-POS | : Lessee's Account |
| PC-POS Cabling Cost | : Php 5,000.00 * For Lessee's Account<br>*subject to change |
| **SECURITY DEPOSIT** | : One Hundred Ninety-Four Thousand Seven Hundred Pesos (Php 194,700.00) |

The Security deposit shall be forfeited in our favor upon a) cancellation of our agreement after you have signed and confirmed this Lease Proposal; b) failure to occupy the leased premises within 30 days from effectivity of the lease; c) termination of the contract for whatever reason prior to expiry date of the term or d) failure to commence store construction as stipulated cancellation clause.

It shall be understood that the security deposit shall only be refunded without interest after the expiration of the term of this lease and after you have satisfactorily vacated and completely delivered the leased premises to us, less whatever amounts you may owe us which may be applied against the security deposit.

**INSURANCE** **: CONTRACTOR'S ALL RISK INSURANCE**

Payable to Prudential Guarantee & Assurance Corp. or any RLC accredited bonding companies. Contractor's All Risk Insurance for bodily injury and property damage to third party for the duration of the construction required.

**CONSTRUCTION DEPOSIT** **: LESSEE'S ACCOUNT - Php 30,000.00**

**1. Construction/Renovation Deposit - Php 5,000.00**

- If there is an existing meter, actual power & water consumption charges
- If there is no existing meter, theoretical charges only
- Housekeeping services - cleaning of common area affected by the construction Plywood fencing - existingstorefront (if applicable)
- Uncertified construction violation penalty (if applicable)
- Other construction damages that may occur (if applicable)
- Security Guard on Post Fee - Rate to be determined by Mall Operation. Applicable for renovation /construction works that would be rendered after mall hours.

**2. Power/Water Meter Deposit - Php 20,000.00**

- Actual amount may vary depending on the type of the meter to be installed. Excess payments to be refunded upon completion of tenant pre-operational checklist clearance. Meter deposit withheld refundable upon termination of Contract of Lease

**3. Performance Cash Bond - Php 5,000.00**

- Refundable upon faithful compliance of all pre-operating requirements.

**Note:**

*A temporary clearance to operate may be given to tenants with minor unrectified construction violations. However, if violation/s are not rectified thirty (30) days after the date of issuance of temporary clearance, RLC will take over and rectify the violations and the rectification cost shall be deducted from the Performance Bond.*

**Other details:**

*Construction deposit and other related items for refund will be processed by Corp. Property Planning Dept. (CPPD) ONLY after fully accomplishing the Tenant Pre-Operational Checklist (TPOC) in coordination with the Mall Architect in-charge.*
*Net amount of all the charges shall be refunded by check or application to future charges in the name of the TENANT as indicated in the RLC Contract of Lease ONLY.*

**INTEREST/PENALTIES ON LATE PAYMENT:**
All unpaid charges except space rental after due date shall be subject to an interest rate of three percent (3%) per month. The space rental shall also be subject of the same interest rate if it remains to be unpaid after the calendar month the rent pertains to. In addition, the LESSOR, at its opinion, may impose penalty of five percent (5%) per month, on all unpaid charges including interests for accounts over 60 days past due until full payment date.

**CANCELLATION:**
Should you fail to commence operation within thirty **(30) days** from effectivity of the lease, we shall have the right to unilaterally cancel this agreement and all deposits received by us will **not** be refunded. We therefore reserve the right to offer the same premises to a third party.

**LEASE CONTRACT**
This Lease Proposal, together with the attached General Terms and Conditions (Annex "A" hereof), embodies all the terms and conditions agreed upon by the parties and shall be binding upon them. The LESSEE or his/her representatives certify that they have read this or caused to be read to him/her, inclusive of its Annexes, and that he/she has fully understood the same.

Please be advised that we are also entertaining other parties to the space and eventual awarding of the space will be on a **first confirmed - first reserve basis** upon receipt of signed Lease Proposal and payment of Security Deposit.

Should our proposal be acceptable to you, kindly indicate your conformity by affixing your signature on the space provided below and return all copies of the same to us on or before May 20, 2022.

Very truly yours,

Eileen F. Bunag
Area Lease Manager

C O N F O R M E:
MARY GRACE FOODS, INC.

16 May 22

By:_____
Mr. Adrian Dimacali
Director

Noted By:

Joretta Pimentel - Jardeleza

Ma. Socorro D.L. Alvarez
Treasury Director

**ACKNOWLEDGEMENT**

REPUBLIC OF THE PHILIPPINES
(QUEZON CITY )S.S.
X----------X

**SUBSCRIBED AND SWORN TO ME** this_____day of_____20____, affiants showing the following proof of identification

| **NAME** | **ID PRESENTED** |
|---|---|
| 1. Robinsons Land Corp. | |
| 2. Joretta Pimentel - Jardeleza | TIN 121-854-546 |
| 3. Ma. Socorro D.L. Alvarez | TIN 175-884-602 |
| 4. Mr. Adrian Dimacali | |

WITNESS my hand and seal.

Doc No. _____
Page No. _____
Book No. _____
Series of 20____.